

Would I Pass a J.D.? Topic Selection in Constitutional Law Examinations: A Comparative Analysis of the J.D. and LL.B. Programs

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Abstract

This study presents a comparative analysis of topic selection in constitutional law examination repositories from a U.S. law school and an Indian law school. Using publicly available past exam repositories, this study compares the Fall 2023 Constitutional Law examination from National University’s J.D. program (LAW 320) with constitutional law question papers from Punyashlok Ahilyadevi Holkar Solapur University’s LL.B. program (March 2023 and October 2023). The U.S. examination emphasizes specialized doctrinal topics—federalism with the Spending Clause, substantive due process, and federalism with the Supremacy Clause—whereas the Indian examinations focus on foundational constitutional principles including the Preamble, Fundamental Rights, and Directive Principles of State Policy. Official model answers were available for the U.S. examination but not for the Indian exams, affecting the depth of comparative analysis. Constitutional law was selected due to its overarching importance in judicial practice across jurisdictions. This analysis highlights distinct topic selections in legal education between the two programs, though the limited scope restricts generalization to broader law exam repositories.

Introduction

This study compares topic selection in two distinct constitutional law curricula: National University’s LAW 320 Constitutional Law (Fall 2023) and Punyashlok Ahilyadevi Holkar

Solapur University’s Constitutional Law exams (March 2023 and October 2023) (National University 2026; Punyashlok Ahilyadevi Holkar Solapur University 2026). The U.S. J.D. examination concentrated on three essay-based questions addressing federalism with the Spending Clause, substantive due process, and federalism with the Supremacy Clause, while the Indian LL.B. exams covered a broader range of constitutional fundamentals.

Methodology

This study analyzed publicly available past examination repositories from two institutions. National University’s Past Exam Repository for the School of Law and Punyashlok Ahilyadevi Holkar Solapur University’s Question Papers portal served as primary sources (National University 2026; Punyashlok Ahilyadevi Holkar Solapur University 2026). The U.S. examination data comprised three essay questions with official final questions and model answers. The Indian examination data included exams from March 2023 and October 2023, with model answers not available from the source. Both sets of materials were examined through careful reading and topic categorization.

Results

National University’s LAW 320 (Fall 2023) presented three essay-based questions structured as follows:

1. **Federalism and the Spending Clause:** This question addressed Congress’s authority to regulate state behavior through conditional spending, with an embedded Second Amendment issue (*Bruen*).
2. **Substantive Due Process:** This question tested understanding of liberty interests protected under the Fourteenth Amendment.
3. **Federalism and the Supremacy Clause:** This question examined the interplay between federal and state authority.

By contrast, Punyashlok Ahilyadevi Holkar Solapur University’s exams encompassed constitutional fundamentals across multiple dimensions:

- The Preamble and constitutional objectives
- Union and territorial structure
- Fundamental Rights
- Directive Principles of State Policy
- Separation of powers
- Amendment procedures

The Indian exams employ a question format emphasizing breadth across constitutional foundations, whereas the U.S. examination emphasizes depth in doctrinal analysis through extended essay responses (National University 2026; Punyashlok Ahilyadevi Holkar Solapur University 2026).

Discussion

The observed differences in topic selection reflect distinct approaches to examining constitutional law. The U.S. J.D. Constitutional Law examination focuses on intricate doctrinal issues—spending power limitations, due process protections, and federalism doctrine—areas that arise frequently in judicial practice and bar preparation. This approach prioritizes deep analysis of complex constitutional doctrines that shape contemporary litigation (National University 2026).

The Indian LL.B. exams adopt systematic coverage of the constitutional framework itself—institutions, rights, and principles—reflecting content relevant to judicial practice in India’s constitutional system. This comprehensive approach reflects the significance of constitutional knowledge to the Indian judiciary (Punyashlok Ahilyadevi Holkar Solapur University 2026).

These differences likely reflect distinct curricular structures across the two jurisdictions. The scope of this study—limited to one examination session per jurisdiction and publicly available data—prevents broader generalization about these topic selection patterns.

Conclusion

This comparative analysis illustrates meaningful differences in constitutional law topic selection between the U.S. J.D. and Indian LL.B. programs. The differences reflect distinct approaches to examining topics central to judicial practice: the U.S. program emphasizes doctrinal specialization while the Indian program emphasizes constitutional framework comprehensiveness. Future research expanding this analysis across multiple examination years and institutions would enable more robust conclusions about systematic differences in constitutional law examination across these jurisdictions. This study provides a methodological framework for conducting such comparative analyses of law examination repositories.

References

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